

SENATE No. 2904

Senate, January 8, 2026 -- Text of the Senate amendment (Senator Rausch) to the House Bill relative to any vacancy among town meeting members in Milford (House, No. 4171).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. Chapter 271 of the acts of 1933 is hereby amended by striking out section 7,
2 as amended by section 1 of chapter 297 of the acts of 1992, and inserting in place thereof the
3 following section:-

4 Section 7. If a vacancy occurs in the full number of town meeting members from any
5 precinct, whether such vacancy arises from a failure of the registered voters thereof to elect a
6 member or from any other cause, the remaining members of the precinct may fill such vacancy
7 from among the registered voters of said precinct until the next annual election. A registered
8 voter of the precinct in which a vacancy occurs shall be eligible for election to fill the vacancy by
9 filing a letter of intent with the town clerk not less than 14 days before the scheduled date of a
10 representative town meeting. Upon receipt of a registered voter's letter of intent, the town clerk
11 shall promptly give notice to the members from the precinct in which the vacancy exists and
12 shall call a special meeting of such members for the purpose of filling the vacancy. The town
13 clerk shall mail notice of the special meeting to each member from the precinct, specifying the
14 object, time and place of the meeting with the notice of the time and place at which the
15 representative town meeting is to be held as set forth in section 3. At the special meeting, a
16 majority of the members from such precinct shall constitute a quorum and they shall elect from

17 their own numbers a chair and a clerk. The election to fill such vacancy shall be by ballot and a
18 majority of the votes cast shall be required for a choice. The chair and clerk shall count the
19 ballots and shall make a certificate of such election and forthwith file the same with the town
20 clerk, together with a written acceptance by the member so elected, who shall thereupon be
21 deemed elected and qualified as a town meeting member, subject to the right of all town meeting
22 members to judge the election and qualifications of their members as set forth in section 3.

23 SECTION 2. This act shall take effect upon its passage.